

June 11, 2026

Jimmy Hu
320 W 38th St. Apt. 2427
New York, NY 10018
(via email)

Hyundai Motor America
1122 Cranbury South River Rd.
Jamesburg, NJ 08831
(via email)

File Date: May 12, 2026

DECISION LETTER

**Re: Attorney General's Case #NC-1-1249605441
Hu v. Hyundai Motor America**

To the Parties:

This will confirm that a hearing was held and closed on: June 9, 2026.

Enclosed is the duly executed Award in the above-captioned matter. Once rendered, the decision was sent to the NYSDRA Program Manager to review for technical completeness and accuracy, and to correct any arithmetic or typographical errors. The Program Manager was required to obtain the approval of the arbitrator for any corrections or additions. Please also note that the arbitrator's signature on your decision may not be notarized because the Association has a current oath for the arbitrator on file. Therefore, a notarized signature is not required on the Award.

Please note the last paragraph of the Award, which states the parties' recourse in the event they are not satisfied with the Award (which references a CPLR Article 75 hearing). Along with the Article 75 hearing, if you believe a mistake has been made on the Arbitrator's decision form, you may seek a modification of the Arbitrator's decision within 20 days after delivery of this award.

The grounds for a Request for Modification, pursuant to Article 75 of the New York State Civil Practice Law and Rules, are as follows:

1. There has been a miscalculation of figures or mistake in the description of any person, thing, or property referred to in the Award; **OR**
2. The arbitrator has awarded on a matter not submitted and the Award may be corrected without affecting the merits of the decision; **OR**
3. The Award is imperfect in form, not affecting the merits

NOTE that there are VERY limited grounds for a Request for Modification. It is NOT to be used as an appeal. Rather, it is a chance to correct an award that is imperfect in a slight way and not a way to get the decision overturned outright.

If you are going to file a “Request for Modification”, please follow the following procedures:

- The Request for Modification **should be e-mailed** (or mailed if no e-mail is available) from the requesting party to the Program Manager at NYSDRA, not the CDRC where the hearing was held. **E-mail lemonlaw@nysdra.org. The Request for Modification letter should be no more than five pages in length.** The supporting documentation may exceed the five-page limit.
- The Request for Modification **should include a letter clearly stating why you believe an error has occurred**, along with any documentation to support your claim. Be as clear and as concise as possible in your modification request.

Keep in mind that if you Request a Modification, your case will be delayed further by as many as forty days. The reason is this: When you submit your Request, the other party will be notified of your Request and given 10 days to respond through NYSDRA. Once the other party has had a chance to respond, or ten days later, whichever comes first, the materials submitted to NYSDRA will be sent directly to the arbitrator for a ruling on the Request for Modification. The arbitrator will review the Request and fill out a “Decision on a Request for Modification” form, which will then be sent to NYSDRA and processed and sent to all parties involved. According to the Attorney General’s guidelines, the arbitrator has up to **30 days** to Rule on the Request, so you may not get a final decision until forty days after you first submit it to NYSDRA.

Note that once you receive this letter and the enclosed decision, you **only** have **20 days** to submit your Request for Modification to NYSDRA. If you exceed the 20 day limit on a Request for Modification, you will have lost the ability to Request for Modification and your only recourse will be an Article 75 proceeding, so timeliness is crucial to your claim.

Sincerely,

Don Raiano
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BCC: Attorney General’s Office (*via e-mail*)

CC: CDRC Coordinator (*via e-mail*)